insurgent in Purana Bazar, Nagaland. Two days after his arrest, he died in the custody of paramilitary forces under suspicious circumstances.[19]

Eventually, it was the twelfth chief justice since the petitions were filed – Justice J.S. Verma – who constituted a five-judge bench of the Supreme Court to hear these petitions in a consolidated proceeding in 1997. (It bears repetition that these petitions had been in the judicial queue since the early 1980s!) Apart from Justice Verma himself, the bench consisted of Justice S.C. Agrawal and three other judges who would themselves become chief justices – Justices M.M. Punchhi, A.S. Anand and S.P. Bharucha. Several prominent advocates appeared on all sides. Attorney General Ashok Desai represented the central government. The NHRC was permitted to intervene, with Rajeev Dhavan appearing on its behalf. Those that appeared on behalf of the petitioners included Shanti Bhushan, Indira Jaising and Kapil Sibal.

The challenge to the AFSPA was two-pronged. The first was that Parliament lacked the legislative authority to enact the law, as it addressed subject matter – public order – that was within the domain of the state legislatures. The second was that the provisions of the AFSPA nevertheless violated fundamental rights under the Constitution, and should be struck down on that basis. After the delay of over fifteen years, the court mercifully took only three months following the conclusion of the hearing to pronounce judgement in the winter of 1997. For the multitude of NGOs and human rights organizations that opposed the AFSPA, the judgement was not worth the wait.

A large bench increases the odds of multiple opinions and disagreements among the judges. In this instance, however, there was unanimity expressed in a single voice. The opinion was written by Justice Agrawal and signed by Chief Justice Verma and the three other chief justices in waiting. The Supreme Court rejected the argument that the AFSPA addressed 'public order', a subject that was within the domain of the state legislatures rather than Parliament. In 1976, the 'public order' entry in the State List had been amended to specifically carve out a power for Parliament to deploy the army, navy or air force 'in aid of civil power'.